

2. Conde and Cusick stopped and detained Mr. Norea without any reasonable suspicion that he had committed a crime. One officer, while acting under color of law, brutally beat Mr. Norea by repeatedly hitting him about his head and face with a closed fist, while the other officer restrained Mr. Norea and attempted to forcefully bring him to the ground.

3. Hawkins, Cusick and John Doe Officers 1-5 witnessed this unlawful assault and battery, but stood by and did nothing to intervene. Hawkins, Conde, Velotti, Cusick and John Doe Officers 1-5 then falsely arrested and falsely imprisoned Mr. Norea, without a proper warrant or probable cause to believe that he had committed a crime. Mr. Norea remained in police custody for approximately 15 hours, after which he was treated at a hospital for the injuries he suffered at the hands of Hawkins, Conde, Velotti, Cusick and John Doe Officers 1-5.

4. Without cause, Mr. Norea was maliciously charged with three separate criminal offenses. Despite the absence of cause, Mr. Norea was prosecuted for a year and a half. During that time, one of the three charges was dismissed for facial insufficiency. Again, despite the absence of cause, Mr. Norea was tried on the remaining charges in April 2015. A jury acquitted Mr. Norea on all counts.

5. Mr. Norea's civil rights and liberties were violated when members of the NYPD assaulted and battered him with unreasonable force without any provocation and subsequently subjected him to a false arrest, false imprisonment and malicious prosecution. Mr. Norea, therefore, brings this civil rights action for declaratory, injunctive and equitable relief, as well as monetary damages, including economic loss, compensatory damages, punitive damages and costs and attorneys' fees, to redress Defendants' unlawful practices and acts committed against him in violation of 42 U.S.C. § 1983 and New York State common law.

6. Defendants' conduct was knowing, malicious, willful and wanton and/or showed a reckless disregard for Mr. Norea and his rights, which has caused, and continues to cause, Mr. Norea to suffer physical injury, great pain and suffering, substantial economic and non-economic damages, permanent harm to his professional and personal reputations, personal humiliation and degradation, severe mental anguish and emotional distress.

JURISDICTION AND VENUE

7. This action arises under the Fourth and Fourteenth Amendments to the United States Constitution, 42 U.S.C. §§ 1983 and 1988, and New York State common law. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343, this being an action seeking redress for the violation of Plaintiff's constitutional and civil rights. Pursuant to 28 U.S.C. §1367(a), the Court has supplemental jurisdiction over Plaintiff's related claims under New York Common Law.

8. Venue is proper in the Eastern District of New York under 28 U.S.C. § 1391 because a substantial part of the events or omissions giving rise to this action occurred in this district.

PARTIES

9. Plaintiff is an African-American male currently residing in Far Rockaway, Queens County, New York.

10. Defendant City of New York is a municipality organized and existing under the laws of the State of New York. At all times relevant hereto, Defendant City, acting through the NYPD, was responsible for the policy, practice, supervision, implementation and conduct of all NYPD matters and was responsible for the appointment, training, supervision and conduct of all NYPD personnel. In addition, at all relevant times, Defendant City was responsible for

enforcing the rules of the NYPD and for ensuring that the NYPD personnel obey the laws of the United States and State of New York.

11. At all relevant times, Officers Hawkins, Velotti and Cusick, Sergeant Conde and John Doe Officers 1-5 are and were duly appointed and acting officers, servants, employees and agents of the City and/or the NYPD, a municipal agency of the City. At all relevant times, said individuals are and were acting under color of state law in the course and scope of their employment and functions as officers, agents, servants and employees of the City. They were also acting for, on behalf of and with the power and authority vested in them by the City and the NYPD and were otherwise performing and engaging in conduct incidental to the performance of their lawful functions in the course of their duties. Officers Hawkins, Velotti and Cusick, Sergeant Conde and John Doe Officers 1-5 are sued in their official and individual capacities.

FACTUAL ALLEGATIONS

12. On October 27, 2013, at or about 6:30 p.m., Mr. Norea and his cousin were playing basketball in the older cousin's backyard. Three others also were present.

13. After about five to ten minutes, Conde and Cusick, without any provocation or cause to believe that Mr. Norea had engaged in any wrongdoing, approached the backyard. They asked Mr. Norea why he was out of breath, and Mr. Norea responded that he was out of breath from playing basketball.

14. Then, still without any provocation or cause to believe that Mr. Norea had engaged in any wrongdoing, the officers asked Mr. Norea to come with them towards the front of the house.

15. The officers grabbed Mr. Norea and began pushing him towards the front of the house and street.

16. As they approached the street, one of the officers tried to grab Mr. Norea's right arm.

17. Mr. Norea moved his arm forward, and the officers immediately began screaming that Mr. Norea was "resisting arrest."

18. At no point in time did Mr. Norea "resist arrest."

19. At no point in time did Mr. Norea threaten to hit or actually hit either officer.

20. Mr. Norea posed no immediate threat to either the safety of the officers or others.

21. Nevertheless, without any provocation and with unreasonable force, one of the officers began to beat Mr. Norea, punching him repeatedly in the head and face.

22. The other officer was attempting to forcefully take Mr. Norea to the ground.

23. Upon information and belief, the officers were in the area to look for a man who had recently committed an assault. Mr. Norea's aunt, cousin, three others and the victim of this recent assault (the "Victim") were all witnesses to the brutal beating of Mr. Norea.

24. Throughout the assault and battery of Mr. Norea, the Victim was yelling, "It is not him, officer! It is not him!"

25. Although Mr. Norea's aunt, cousin, three others and even the Victim told the officers that Mr. Norea had done nothing wrong, they continued to beat him and eventually arrested him.

26. Velotti, Hawkins and John Does Officers 1-5 arrived on the scene as or before Mr. Norea was assaulted and battered, but did nothing to intervene and prevent the unlawful assault and battery. Velotti, Hawkins and John Does Officers 1-5 also failed to prevent, and actually participated in, Mr. Norea's arrest.

27. No cause existed to arrest Mr. Norea.

28. Mr. Norea was taken to the 101st Precinct, where he was confined in a jail cell until approximately 10:00 a.m. or 11:00 a.m. the next morning.

29. Mr. Norea was then processed at central booking where he was charged with Obstructing Governmental Administration in the Second Degree, Resisting Arrest and Disorderly Conduct. No cause existed to charge Mr. Norea with these offenses. Defendants knowingly made numerous false statements in support of these charges.

30. At the 101st Precinct, the police officer who took Mr. Norea's hand prints told him that that Defendants' conduct was not proper because Mr. Norea had done nothing wrong. The officer told Mr. Norea that he just needed to go through processing and everything would go by smoothly.

31. After the officers released Mr. Norea on the morning of October 28, 2013, he sought treatment in the emergency room at St. John's Episcopal Hospital. He was diagnosed with internal bruises in his face and suffered injuries to his jaw. The doctors gave Mr. Norea medication for the pain.

32. Mr. Norea missed work because of the incident.

33. As a result of the wanton and unlawful attack, false arrest and false imprisonment of Mr. Norea, he has suffered serious and personal injuries. He has also suffered emotional trauma, including but not limited to, fear, embarrassment, humiliation, emotional distress, anxiety, as well as public disgrace and damage to his personal and professional reputations.

34. The City, through the Queens County District Attorney's ("QCDA") Office, continued to prosecute Mr. Norea despite being well-aware that no cause exists to justify such prosecution. This prosecution was driven by false statements given by Defendants regarding the events surrounding Mr. Norea's arrest.

35. During a conversation between Mr. Norea's defense attorney and an Assistant District Attorney ("ADA"), Mr. Norea's defense attorney advised the ADA that he was contemplating civil action in order to protect and exercise his rights under the Constitution of the United States of America.

36. In response, the ADA stated that, in light of the fact that Mr. Norea was contemplating such civil action, the charges could not be dismissed.

37. The ADA stated that the prosecution of the charges would have to continue in order to "protect the integrity of the [QCDA's] office."

38. Mr. Norea was forced to expend significant resources and time to defend against the criminal charge brought against him, including but not limited to, having to make numerous court appearances.

39. On or about May 6, 2014, the charge of Disorderly Conduct was dismissed after motion for facial insufficiency.

40. On or about April 16, 2015, Mr. Norea was put on trial for Obstructing Governmental Administration in the Second Degree and Resisting Arrest.

41. On April 21, 2015, Mr. Norea was acquitted by the jury on both counts.

AS AND FOR A FIRST CAUSE OF ACTION
(42 U.S.C § 1983 – False Arrest and False Imprisonment)

42. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

43. Defendants wrongfully and illegally arrested, detained and/or imprisoned Plaintiff.

44. The wrongful, unjustifiable and unlawful apprehension, arrest, detention and imprisonment of Plaintiff were carried out without Plaintiff's consent and without probable cause or reasonable suspicion.

45. Throughout this period, Plaintiff was unlawfully, wrongfully and unjustifiably held under arrest, deprived of his liberty and falsely imprisoned.

46. All this occurred without any fault or provocation on the part of Plaintiff.

47. Officers Hawkins, Velotti and Cusick, Sergeant Conde and John Doe Officers 1-5 acted under pretense and color of state law and within the scope of their respective employments as NYPD officers.

48. Based on the conduct described above, Defendants deprived Plaintiff of his constitutional rights secured by 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments to the Constitution of the United States of America.

49. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff suffered the damages alleged herein, entitling Plaintiff to an award of monetary damages, attorneys' fees and other relief.

50. Officers Hawkins, Velotti and Cusick, Sergeant Conde and John Doe Officers 1-5 exhibited reckless and/or callous indifference to Plaintiff's federally protected rights, including Plaintiff's constitutional right to be free from arrest and imprisonment without probable cause, entitling Plaintiff to an award of punitive damages.

AS AND FOR A SECOND CAUSE OF ACTION
(42 U.S.C. § 1983 – Excessive Use of Force)

51. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

52. Officers Hawkins, Velotti and Cusick, Sergeant Conde and John Doe Officers 1-5 subjected Plaintiff to an excessive use of force in connection with his arrest, detention and deprivation of liberty described above.

53. One officer unlawfully struck Plaintiff on his head and face, and another officer joined him in restraining Plaintiff and bringing him to the ground. Velotti, Hawkins and John Doe Officers 1-5 observed this unlawful use of force and did nothing to intervene.

54. The aforementioned conduct deprived Plaintiff of his rights, remedies, privileges and immunities guaranteed to every citizen of the United States, in violation of 42 U.S.C. § 1983, including, but not limited to, rights guaranteed by the Fourth and Fourteenth Amendments to the Constitution of the United States of America.

55. Officers Hawkins, Velotti and Cusick, Sergeant Conde and John Doe Officers 1-5 acted under pretense and color of state law, in their individual and official capacities, and within the scope of their respective employments as NYPD officers.

56. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages alleged herein, entitling Plaintiff to an award of monetary damages, attorneys' fees and other relief.

57. Officers Hawkins, Velotti and Cusick, Sergeant Conde and John Doe Officers 1-5 exhibited reckless and/or callous indifference to Plaintiff's federally protected rights, including Plaintiff's constitutional right to be free from excessive force, entitling Plaintiff to an award of punitive damages.

AS AND FOR A THIRD CAUSE OF ACTION
(42 U.S.C. § 1983 – Malicious Prosecution)

58. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if set forth herein.

59. The Fourth Amendment of the United States Constitution protects citizens from overzealous and malicious prosecution by government officials without probable cause.

60. The commencement and prosecution of the criminal judicial proceedings against Plaintiff, including the arrest, the imprisonment, and the charges against Plaintiff were committed by or at the insistence of Defendants with malice and without probable cause or legal justification.

61. The criminal judicial proceedings initiated against Plaintiff were terminated in Plaintiff's favor.

62. The arrest, imprisonment and prosecution of Plaintiff were malicious and unlawful because Plaintiff had committed no crime and there was no probable cause to believe that Plaintiff had committed a crime.

63. Defendants' actions were intentional, unwarranted and in violation of the law. The individual Defendants had full knowledge that the charges made against Plaintiff were false and untrue.

64. As a consequence of the malicious prosecution by Defendants, Plaintiff incurred substantial loss of liberty, including, but not limited to, having to attend court appearance and a public trial.

65. This conduct by Defendants represents a violation of 42 U.S.C. § 1983, given that Defendants' actions were undertaken under color of state law.

66. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff suffered the damages hereinbefore alleged, entitling Plaintiff to an award of monetary damages, attorneys' fees and other relief.

67. The acts of Defendants were willful, wanton, malicious and oppressive, were motivated solely by a desire to harm Plaintiff without regard for Plaintiff's well-being and were based on a lack of concern and ill-will towards him. Such acts therefore deserve an award of punitive damages.

AS AND FOR A FOURTH CAUSE OF ACTION
(42 U.S.C. § 1983 – Municipal Liability)

68. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

69. Under color of law, Hawkins, Velotti and Cusick, Sergeant Conde and John Doe Officers 1-5 stopped Plaintiff without reasonably suspecting Plaintiff of having committed a crime, deployed excessive and unreasonable force against Plaintiff and arrested, searched and/or imprisoned Plaintiff without probable cause to believe that Plaintiff had committed a crime, even though Hawkins, Velotti and Cusick, Sergeant Conde and John Doe Officers 1-5 knew that said misconduct would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

70. Upon information and belief, the unlawful arrest, detention, deprivation of liberty, excessive use of force and malicious prosecution perpetrated against Plaintiff was the result and manifestation of the customs, policies, rules, practices, training and/or procedures of the City and NYPD.

71. Upon information and belief, it is the customs, policies, rules, practices, training and/or procedures of the City and the NYPD to stop citizens of color without reasonably suspecting them of having committed a crime.

72. Additionally, the City, pursuant to policies, customs, practices and procedures, inadequately screens, hires, retains, trains, promotes and supervises its employees serving as police officers, causing the violation of Plaintiff's rights as described herein. As a result of the

City's failure to properly recruit, screen, train, discipline and supervise its officers, including Officers Hawkins, Velotti and Cusick, Sergeant Conde and John Doe Officers 1-5, the City has tacitly authorized, ratified and has been deliberately indifferent to the unconstitutional acts and conduct complained of herein.

73. The existence of these unconstitutional customs and policies can be inferred from the repeated occurrences of similar illegal conduct, as documented in the numerous civil rights actions filed against the City in the state and federal courts.

74. The foregoing customs, policies, usages, practices, procedures and rules of the City and NYPD constitute deliberate indifference to the safety, well-being and constitutional rights of Plaintiff.

75. As a consequence of the City's systemic practice, pattern and custom of intentionally promoting and supporting NYPD officers' and officials' violations of 42 U.S.C. § 1983, Plaintiff was deprived of his freedom and was physically and emotionally harmed.

76. The foregoing customs, policies, usages, practices, procedures and rules of the City and NYPD were the direct and proximate cause of the constitutional violations Plaintiff suffered.

77. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City and NYPD, Plaintiff was unlawfully stopped, assaulted and battered, arrested, searched, imprisoned and maliciously prosecuted.

78. Officers Hawkins, Velotti and Cusick, Sergeant Conde and John Doe Officers 1-5, while acting under color of state law, were directly and actively involved in violating Plaintiff's constitutional rights.

79. As a direct and proximate result of the City's illegal customs, policies, practices and procedures, Plaintiff suffered violations of his rights under 42 U.S.C. § 1983 and the Fourth and Fourteenth Amendments to the Constitution of the United States of America.

80. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff suffered the damages hereinbefore alleged, entitling Plaintiff to an award of monetary damages, attorneys' fees and other relief.

AS AND FOR A FIFTH CAUSE OF ACTION
(Battery)

81. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

82. Officers Conde and Cusick, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner, punched Plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

83. Officers Velotti, Hawkins and John Doe Officers 1-5 observed this unlawful battery and made no effort to stop it.

84. Defendant City and its officers, agents, servants and employees were responsible for Plaintiff's battery. Defendant City, as employer of Officers Hawkins, Velotti and Cusick, Sergeant Conde and John Doe Officers 1-5, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

85. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages alleged herein.

86. The conduct of Officers Hawkins, Velotti and Cusick, Sergeant Conde and John Doe Officers 1-5 was wanton, malicious and/or cruel, entitling Plaintiff to an award of punitive damages.

AS AND FOR A SIXTH CAUSE OF ACTION
(Assault)

87. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

88. Officer Cusick and Sergeant Conde, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff. Officers Velotti, Hawkins and John Doe Officers 1-5 observed this unlawful assault and made no effort to stop it. Officer Cusick and Sergeant Conde had the real or apparent ability to cause imminent, harmful and/or offensive bodily contact and intentionally did violent and/or menacing acts which threatened such contact to the Plaintiff, or failed to prevent such acts, and such acts caused apprehension of such contact in the Plaintiff.

89. Defendant City and its officers, agents, servants and employees were responsible for the assaults on Plaintiff. Defendant City, as employer of Officers Hawkins, Velotti and Cusick, Sergeant Conde and John Doe Officers 1-5, are responsible for their wrongdoing under the doctrine of *respondeat superior*.

90. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff sustained the damages alleged herein, entitling Plaintiff to an award of monetary damages and other relief.

91. The conduct of Officers Hawkins, Velotti and Cusick, Sergeant Conde and John Doe Officers 1-5 was wanton, malicious and/or cruel, entitling Plaintiff to an award of punitive damages.

AS AND FOR A SEVENTH CAUSE OF ACTION

(False Arrest and False Imprisonment in Violation of New York State Common Law)

92. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if fully set forth herein.

93. On October 27, 2013, Hawkins, Velotti and Cusick, Sergeant Conde and John Doe Officers 1-5 intentionally, falsely, unlawfully and wrongfully, with force, without probable cause and without Plaintiff's consent and against his will, falsely arrested and/or falsely imprisoned Plaintiff.

94. Plaintiff was conscious of the confinement.

95. Plaintiff did not consent to the confinement.

96. Plaintiff's confinement was not otherwise privileged because Officers Hawkins, Velotti and Cusick, Sergeant Conde and John Doe Officers 1-5 had no probable cause to believe that Plaintiff had committed a crime when they deprived him of his liberty for an unreasonable time.

97. As a direct and proximate result of Plaintiff's false arrest and imprisonment detailed above, Plaintiff sustained the damages hereinbefore alleged, entitling Plaintiff to an award of monetary damages and other relief.

98. The conduct of Officers Hawkins, Velotti and Cusick, Sergeant Conde and John Doe Officers 1-5 was wanton, malicious and/or cruel, entitling Plaintiff to an award of punitive damages.

AS AND FOR AN EIGHTH CAUSE OF ACTION

(Malicious Prosecution in Violation of New York State Common Law)

99. Plaintiff incorporates by reference the allegations set forth in all preceding paragraphs as if set forth herein.

100. The Fourth Amendment of the United States Constitution protects citizens from overzealous and malicious prosecution by government officials without probable cause.

101. The commencement and prosecution of the criminal judicial proceedings against Plaintiff, including the arrest, imprisonment, and charges against Plaintiff were committed by or at the insistence of Defendants with malice and without probable cause or legal justification.

102. The criminal judicial proceedings initiated against Plaintiff were terminated in Plaintiff's favor.

103. The arrest, imprisonment and prosecution of Plaintiff were malicious and unlawful because Plaintiff had committed no crime and there was no probable cause to believe that Plaintiff had committed a crime.

104. Defendants' actions were intentional, unwarranted and in violation of the law. The individual Defendants had full knowledge that the charges made against Plaintiff were false and untrue.

105. As a consequence of the malicious prosecution by Defendants, Plaintiff incurred substantial loss of liberty, including, but not limited to, having to attend court appearance and a public trial.

106. This conduct by Defendants represents a violation of 42 U.S.C. § 1983, given that Defendants' actions were undertaken under color of state law.

107. As a direct and proximate result of the misconduct and abuse of authority detailed above, Plaintiff suffered the damages hereinbefore alleged, entitling Plaintiff to an award of monetary damages, attorneys' fees and other relief.

108. The acts of Defendants were willful, wanton, malicious, oppressive, motivated solely by a desire to harm Plaintiff without regard for Plaintiff's well-being and based on a lack of concern and ill-will towards him. Thus, Plaintiff is entitled to an award of punitive damages.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff prays that the Court enter judgment in his favor and against Defendants, containing the following relief:

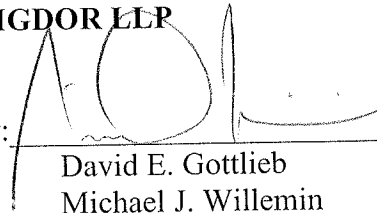
- A. A declaratory judgment that Defendants willfully violated Plaintiff's rights secured by the laws of the United States of America and the State of New York;
- B. An injunction and order to enjoin Defendants from continuing to violate the laws of the United States of America, as alleged herein, and any such other injunctive relief as may be appropriate to prevent future violations of said federal laws;
- C. An award of damages to be determined at trial, plus prejudgment interest, to compensate Plaintiff for harm to his personal and professional reputations;
- D. An award of damages, plus prejudgment interest, to compensate Plaintiff for all non-monetary and/or compensatory harm, including but not limited to, compensation for his mental anguish, anxiety, humiliation, embarrassment, stress, emotional pain and suffering, emotional distress and physical injuries;
- E. An award of damages for any and all other monetary and/or non-monetary losses suffered by Plaintiff in an amount to be determined at trial, plus prejudgment interest;
- F. An award of punitive damages;
- G. An award of costs that Plaintiff has incurred in this action, as well as Plaintiff's reasonable attorneys' fees;
- H. Such other and further relief as the Court may deem just and proper.

JURY DEMAND

Plaintiff hereby demands a trial by jury on all the issues of fact and damages stated herein.

Dated: June 26, 2015
New York, New York

WIGDOR LLP

By: 

David E. Gottlieb

Michael J. Willemin

85 Fifth Avenue
New York, NY 10003
Telephone: (212) 257-6800
Facsimile: (212) 257-6845
dgottlieb@wigdorlaw.com
mwillemin@wigdorlaw.com

Counsel for Plaintiff

AO 440 (Rev. 12/09) Summons in a Civil Action

UNITED STATES DISTRICT COURT

for the

Eastern District of New York

KERRON NOREA

Plaintiff

v.

THE CITY OF NEW YORK, et al.

Defendant

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Civil Action No. 14-cv-6165(RRM)(VVP)

SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)* Officer Neil Cusick
101st Precinct
16-12 Mott Avenue
Far Rockaway, New York 11691

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are:

David E. Gottlieb, Esq. and Michael J. Willemin, Esq.
Wigdor LLP
85 Fifth Avenue
Fifth Floor
New York, New York 10003

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

CLERK OF COURT

Date: _____

Signature of Clerk or Deputy Clerk

Civil Action No. 14-cv-6165(RRM)(VVP)

PROOF OF SERVICE

(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))

This summons for *(name of individual and title, if any)* _____
was received by me on *(date)* _____.

☐ I personally served the summons on the individual at *(place)* _____
_____ on *(date)* _____; or

☐ I left the summons at the individual's residence or usual place of abode with *(name)* _____
_____, a person of suitable age and discretion who resides there,
on *(date)* _____, and mailed a copy to the individual's last known address; or

☐ I served the summons on *(name of individual)* _____, who is
designated by law to accept service of process on behalf of *(name of organization)* _____
_____ on *(date)* _____; or

☐ I returned the summons unexecuted because _____; or

☐ Other *(specify)*: _____
_____.

My fees are \$ _____ for travel and \$ _____ for services, for a total of \$ _____ 0.00 _____.

I declare under penalty of perjury that this information is true.

Date: _____

Server's signature

Printed name and title

Server's address

Additional information regarding attempted service, etc:

AO 440 (Rev. 12/09) Summons in a Civil Action

UNITED STATES DISTRICT COURT

for the

Eastern District of New York

KERRON NOREA

Plaintiff

v.

THE CITY OF NEW YORK, et al.

Defendant

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Civil Action No. 14-cv-6165(RRM)(VVP)

SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)* Officer Nicholas Velotti
101st Precinct
16-12 Mott Avenue
Far Rockaway, New York 11691

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are:

David E. Gottlieb, Esq. and Michael J. Willemin, Esq.
Wigdor LLP
85 Fifth Avenue
Fifth Floor
New York, New York 10003

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

CLERK OF COURT

Date: _____

Signature of Clerk or Deputy Clerk

Civil Action No. 14-cv-6165(RRM)(VVP)

PROOF OF SERVICE

(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))

This summons for *(name of individual and title, if any)* _____
was received by me on *(date)* _____.

☐ I personally served the summons on the individual at *(place)* _____
_____ on *(date)* _____; or

☐ I left the summons at the individual's residence or usual place of abode with *(name)* _____
_____, a person of suitable age and discretion who resides there,
on *(date)* _____, and mailed a copy to the individual's last known address; or

☐ I served the summons on *(name of individual)* _____, who is
designated by law to accept service of process on behalf of *(name of organization)* _____
_____ on *(date)* _____; or

☐ I returned the summons unexecuted because _____; or

☐ Other *(specify)*: _____.

My fees are \$ _____ for travel and \$ _____ for services, for a total of \$ _____ 0.00 _____.

I declare under penalty of perjury that this information is true.

Date: _____

Server's signature

Printed name and title

Server's address

Additional information regarding attempted service, etc:

AO 440 (Rev. 12/09) Summons in a Civil Action

UNITED STATES DISTRICT COURT

for the

Eastern District of New York

KERRON NOREA

Plaintiff

v.

THE CITY OF NEW YORK, et al.

Defendant

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Civil Action No. 14-cv-6165(RRM)(VVP)

SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)* Sergeant Kenn Conde
101st Precinct
16-12 Mott Avenue
Far Rockaway, New York 11691

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are:

David E. Gottlieb, Esq. and Michael J. Willemin, Esq.
Wigdor LLP
85 Fifth Avenue
Fifth Floor
New York, New York 10003

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

CLERK OF COURT

Date: _____

Signature of Clerk or Deputy Clerk

Civil Action No. 14-cv-6165(RRM)(VVP)

PROOF OF SERVICE

(This section should not be filed with the court unless required by Fed. R. Civ. P. 4 (l))

This summons for *(name of individual and title, if any)* _____
was received by me on *(date)* _____.

☐ I personally served the summons on the individual at *(place)* _____
_____ on *(date)* _____; or

☐ I left the summons at the individual's residence or usual place of abode with *(name)* _____
_____, a person of suitable age and discretion who resides there,
on *(date)* _____, and mailed a copy to the individual's last known address; or

☐ I served the summons on *(name of individual)* _____, who is
designated by law to accept service of process on behalf of *(name of organization)* _____
_____ on *(date)* _____; or

☐ I returned the summons unexecuted because _____; or

☐ Other *(specify)*: _____.

My fees are \$ _____ for travel and \$ _____ for services, for a total of \$ _____ 0.00 _____.

I declare under penalty of perjury that this information is true.

Date: _____

Server's signature

Printed name and title

Server's address

Additional information regarding attempted service, etc: